

ing the trust settlement to confer the power of executing the trusts and giving receipts on the survivors or survivor, his executors or administrators, their or his assigns, does not seem open to much objection, and has received the sanction of general usage. Any declaration of trust of the mortgage that may be requisite is executed by a separate deed. The trustees should, however, also execute the mortgage deed, as doubts have been entertained (though it is conceived without reason (*c*)) whether, if they omit to execute the declaration will bind them. By this method, should the mortgage be called in or transferred before any change of trustees occurs, no inconvenience arises (*d*). Upon a change of trustees, however, the difficulty of framing a transfer of the mortgage to the new trustees so as not to disclose the trust is very great. Some conveyancers, indeed, treat the difficulty as insurmountable, and disclose the trust; others recite in the transfer an actual payment of the mortgage money by the new trustees to the old, a practice open to the objection that it involves a recital absolutely contrary to fact (*e*).

[*333] Another and middle course frequently * adopted, is as follows: A. and B. being appointed new trustees in the room of C. and D., the recitals omit to notice the ap-

strument, makes the receipt of the survivors or survivor, or of the personal representatives of the last survivor, a complete discharge in all cases where, in a mortgage or transfer made since the 31st December, 1881, the money advanced or owing is expressed to be advanced by or owing to more persons than one out of money or as money belonging to them on a joint account, or the mortgage or transfer is made to more persons than one jointly and not in shares.]

(*c*) How can a person claim at the same time under and against a deed? If he claim under the mortgage at all, he must admit the declaration that the money was a joint advance. Besides the presumption (unless and until the contrary is proved) would be, that the solicitor who prepared

the deed had sufficient authority to insert the clause.

[(*d*) *Re* Harmon and Uxbridge, &c. Railway Company, 24 Ch. D. 720, 726.]

(*e*) In a note to Jarman's Bythewood, vol. 6, p. 381, it is stated that "some gentlemen introduce a declaration that the mortgagees are *trustees*, and have no beneficial interest, conceiving, and, it is apprehended, rightly, that this affirmation, which refers to no specific trust, would not render it incumbent on any person paying the mortgage to inquire into the nature of the trust." This proposition, it is conceived, cannot safely be acted upon. See on the doctrine of notice, *Jones v. Smith*, 1 Hare, 43; 1 Ph. 244; *Bridgman v. Gill*, 24 Beav. 306; *Jones v. Williams*, 24 Beav. 47.